

24STCV04196 24STCV04196

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 24STCV04196 Hearing Date: September 18, 2026 Dept: 414

24STCV04196 Samuel Pascual Yacon Ricac,
et al. v. Daunita Rene Scott, et al.

Friday, September
18, 2026

[TENTATIVE] ORDER TAKING

OFF CALENDAR DEFENDANTS' MOTION TO COMPEL DEPOSITION OF PERSON MOST
KNOWLEDGEABLE OF NATIONAL GENERAL INSURANCE COMPANY (2490)

This action
arises from injuries Plaintiffs allegedly sustained in a motor vehicle
accident. Defendants move to compel the deposition of the person most
knowledgeable at National General Insurance Company ("NGIC"), an entity who is
not a party in this action. Defendants personally served a deposition subpoena
for personal appearance and production of records on NGIC on March 26, 2026.
(Mot. Ex. A.)

The motion is defective as the
first proof of service attached to the motion reflects that Defendants served
the motion on NGIC by mail only. The nonparty deponent must be
personally served with the motion "unless the nonparty deponent agrees to
accept service by mail or electronic service at an address or electronic
service address specified on the deposition record." (Cal Rules of Court, Rule 3.1346.).

Defendants filed another
proof of service on September 11, 2026, showing personal service of the motion on
NGIC was accomplished on September 2, 2026. Moving parties are required to give

16 days of notice. (Code
Civ. Proc., § 1005, subd. (b).)

Accordingly, the court
takes the motion OFF CALENDAR.